



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 22, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11966
(THIRTEENTH REVISION)

EXPIRATION DATE: 2027-05-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Evonik Corporation
Parsippany, NJ
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 5.1 materials in certain DOT specification 111A60ALW2 tank cars equipped with half head shields instead of the required full head protection. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.31(b)(3)(ii) in that half head shields are not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Evonik Corporation dated January 24, 2023, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hydrogen peroxide, aqueous solutions <i>with not less than 8 percent but less than 20 percent hydrogen peroxide (stabilized as necessary)</i>	5.1	UN2984	III
Hydrogen peroxide, aqueous solutions <i>with not less than 20 percent but not more than 40 percent hydrogen peroxide (stabilized as necessary)</i>	5.1	UN2014	II
Hydrogen peroxide, aqueous solutions <i>with more than 40 percent but not more than 60 percent hydrogen peroxide (stabilized as necessary)</i>	5.1	UN2014	II
Hydrogen peroxide, stabilized or Hydrogen peroxide aqueous solutions, stabilized <i>with more than 60 percent hydrogen peroxide</i>	5.1	UN2015	I

7. SAFETY CONTROL MEASURES:

a. PACKAGINGS: Packagings prescribed are DOT specification 111A60ALW2 tank cars with reporting marks and numerals identified in the original application or in the attachment of this special permit. Each tank car shall be equipped with a half head shield instead of the required full head protection. Half head shields must be in accordance with AAR Approval Number A956002.

b. MARKING: Each tank car shall be marked "DOT-SP 11966" in letters and numerals at least 4 inches high on a contrasting background above the DOT specification markings.

8. SPECIAL PROVISIONS: None.9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.10. MODAL REQUIREMENTS: None as a requirement of this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO:ae/NICKS

AttachmentCar NumberStatus

FMLX 17000	Removed From HAZMAT Service
FMLX 17001	Removed From HAZMAT Service
FMLX 17002	Removed From HAZMAT Service
FMLX 17003	Removed From HAZMAT Service
FMLX 17006	Removed From HAZMAT Service
FMLX 17004	Half Head Shield Installed
FMLX 17005	Half Head Shield Installed
FMLX 17007	Half Head Shield Installed
FMLX 17008	Half Head Shield Installed
FMLX 17009	Half Head Shield Installed
FMLX 17010	Half Head Shield Installed
FMLX 17011	Half Head Shield Installed
FMLX 17012	Half Head Shield Installed
FMLX 17013	Half Head Shield Installed
FMLX 17014	Half Head Shield Installed
FMLX 17015	Half Head Shield Installed
FMLX 17016	Half Head Shield Installed
FMLX 17017	Half Head Shield Installed
FMLX 17018	Half Head Shield Installed